to the marine environment, taking into account guidelines
developed by the Organization;
.2 Both the port of departure and the next port of destination are

---CHUNK---

SOURCE: MEPC.201(62).pdf
washing water do not include any substances classified as harmful
to the marine environment, taking into account guidelines
developed by the Organization;
.2 Both the port of departure and the next port of destination are
within the special area and the ship will not transit outside the
special area between those ports;
.3 No adequate reception facilities are available at those ports taking
into account guidelines developed by the Organization; and
.4 Where the conditions of subparagraphs 2.1, 2.2 and 2.3 of this
paragraph have been fulfilled, discharge of cargo hold washing
water containing residues shall be made as far as practicable
from the nearest land or the nearest ice shelf and not less
than 12 nautical miles from the nearest land or the nearest ice
shelf.
2 Cleaning agents or additives contained in deck and external surfaces wash water
may be discharged into the sea, but only if these substances are not harmful to the marine
environment, taking into account guidelines developed by the Organization.
3 The following rules (in addition to the rules in paragraph 1 of this regulation) apply
with respect to the Antarctic area:

---CHUNK---

SOURCE: MEPC.201(62).pdf
environment, taking into account guidelines developed by the Organization.
3 The following rules (in addition to the rules in paragraph 1 of this regulation) apply
with respect to the Antarctic area:
.1 Each Party at whose ports ships depart en route to or arrive from the
Antarctic area undertakes to ensure that as soon as practicable adequate
facilities are provided for the reception of all garbage from all ships, without
causing undue delay, and according to the needs of the ships using them .
. 2 Each Party shall ensure that all ships entitled to fly its flag, before entering
the Antarctic area, have sufficient capacity on board for the retention of all
garbage, while operating in the area and have concluded arrangements to
discharge such garbage at a reception facility after leaving the area.
4 When garbage is mixed with or contaminated by other substances prohibited from
discharge or having different discharge requirements, the more stringent requirements shall
apply.
RESOLUTION MEPC.201(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL

---CHUNK---

SOURCE: MEPC.201(62).pdf
discharge or having different discharge requirements, the more stringent requirements shall
apply.
RESOLUTION MEPC.201(62)

Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973Regulation 7
Exceptions
- 7 -
1 Regulations 3, 4, 5 and 6 of this Annex shall not apply to:
.1 The discharge of garbage from a ship necessary for the purpose of securing the safety of a ship and those on board or saving life at sea; or
.2 The accidental loss of garbage resulting from damage to a ship or its equipment, provided that all reasonable precautions have been taken before and after the occurrence of the damage, to prevent or minimize the accidental loss; or
.3 The accidental loss of fishing gear from a ship provided that all reasonable precautions have been taken to prevent such loss; or
.4 The discharge of fishing gear from a ship for the protection of the marine environment or for the safety of that ship or its crew.
2 E xception of en route :
.1 The en route requirements of regulations 4 and 6 shall not apply to the

---CHUNK---

SOURCE: MEPC.201(62).pdf
.4 The discharge of fishing gear from a ship for the protection of the marine environment or for the safety of that ship or its crew.
2 E xception of en route :
.1 The en route requirements of regulations 4 and 6 shall not apply to the discharge of food wastes where it is clear the retention on board of these food wastes presents an imminent health risk to the people on board.
Regulation 8
Reception facilities
1 Each Party undertakes to ensure the provision of adequate facilities at ports and terminals for the reception of garbage without causing undue delay to ships, and according to the needs of the ships using them.
2 Reception facilities within special areas
.1 Each Party, the coastline of which borders a special area, undertakes to ensure that as soon as possible, in all ports and terminals within the special area, adequate reception facilities are provided, taking into account the needs of ships operating in these areas .
. 2 Each Party concerned shall notify the Organization of the measures taken pursuant to subparagraph 3.1 of this regulation. Upon receipt of sufficient notifications the Organization shall establish a date from which the

---CHUNK---

SOURCE: MEPC.201(62).pdf
. 2 Each Party concerned shall notify the Organization of the measures taken pursuant to subparagraph 3.1 of this regulation. Upon receipt of sufficient notifications the Organization shall establish a date from which the requirements of regulation 6 of this Annex in respect of the area in question are to take effect. The Organization shall notify all Parties of the date so established no less than twelve months in advance of that date. Until the date so established, ships that are navigating in a special area shall comply with the requirements of regulation 4 of this Annex as regards discharges outside special areas.

3 Each Party shall notify the Organization for transmission to the Contracting Parties concerned of all cases where the facilities provided under this regulation are alleged to be inadequate.
RESOLUTION MEPC.201(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 8 -
Regulation 9
Port State control on operational requirements
1 A ship when in a port or an offshore terminal of another Party is subject to inspection

---CHUNK---

SOURCE: MEPC.201(62).pdf
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 8 -
Regulation 9
Port State control on operational requirements
1 A ship when in a port or an offshore terminal of another Party is subject to inspection by officers duly authorized by such Party concerning operational requirements under this Annex, where there are clear grounds for believing that the master or crew are not familiar with essential shipboard procedures relating to the prevention of pollution by garbage.
2 In the circumstances given in paragraph 1 of this regulation, the Party shall take such steps as will ensure that the ship shall not sail until the situation has been brought to order in accordance with the requirements of this Annex.
3 Procedures relating to the port State control prescribed in article 5 of the present Convention shall apply to this regulation.
4 Nothing in this regulation shall be construed to limit the rights and obligations of a Party carrying out control over operational requirements specifically provided for in the present Convention.
Regulation 10
Placards , garbage management plans and garbage record-keeping

---CHUNK---

SOURCE: MEPC.201(62).pdf
Party carrying out control over operational requirements specifically provided for in the present Convention.
Regulation 10
Placards , garbage management plans and garbage record-keeping
1 .1 Every ship of 12 m or more in length overall and fixed or floating platforms shall display placards which notify the crew and passengers of the discharge requirements of regulations 3, 4, 5 and 6 of this Annex, as applicable .
. 2 The placards shall be written in the working language of the ship's crew and, for ships engaged in voyages to ports or offshore terminals under the jurisdiction of other Parties to the Convention, shall also be in English, French or Spanish.
2 Every ship of 100 gross tonnage and above, and every ship which is certified to carry 15 or more persons, and fixed or floating platforms shall carry a garbage management plan which the crew shall follow. This plan shall provide written procedures for minimizing, collecting, storing, processing and disposing of garbage, including the use of the equipment on board. It shall also designate the person or persons in charge of carrying out the plan.

---CHUNK---

SOURCE: MEPC.201(62).pdf
collecting, storing, processing and disposing of garbage, including the use of the equipment on board. It shall also designate the person or persons in charge of carrying out the plan. Such a plan shall be based on the guidelines developed by the Organization and written in the working language of the crew.

3 Every ship of 400 gross tonnage and above and every ship which is certified to carry 15 or more persons engaged in voyages to ports or offshore terminals under the jurisdiction of another Party to the Convention and every fixed or floating platform shall be provided with a Garbage Record Book. The Garbage Record Book, whether as a part of the ship's official log-book or otherwise, shall be in the form specified in the appendix to this Annex:

.1 Each discharge into the sea or to a reception facility, or a completed incineration, shall be promptly recorded in the Garbage Record Book and signed for on the date of the discharge or incineration by the officer in charge. Each completed page of the Garbage Record Book shall be signed by the master of the ship. The entries in the Garbage Record Book

---CHUNK---

SOURCE: MEPC.201(62).pdf
signed for on the date of the discharge or incineration by the officer in charge. Each completed page of the Garbage Record Book shall be